

24SMCV05764 24SMCV05764

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-06-29

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Case Number: 24SMCV05764 Hearing Date: June 29, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

SALAR HAZANY, et al.,

Plaintiff,

v.

SEMYON GINZBURG, et al.,

Defendants.

Case No.:

24SMCV05764

Hearing Date: 06/29/2026

Trial Date:

08/30/2027

[TENTATIVE] RULING RE:

DEFENDANT EMPRIE WEST HOMEOWNERS ASSOCIATION, INC.'S MOTION FOR LEAVE

TO FILE CROSS-COMPLAINT

Background

This

action arises out of a landlord-tenant dispute.

On

November 24, 2025, Salara Hazany and Tiffany Hazany ("Plaintiffs") filed a Complaint against Semyon and William Ginzburg (collectively "the Ginzburgs") and Empire West Homeowners' Association, Inc. ("Empire West") alleging causes of action for constructive eviction and negligence, among others, based on the claim of wrongful eviction. Empire West filed an answer on January 16, 2025.

On

May 26, 2026, Empire West filed the instant motion for leave to file a Cross-Complaint against the Ginzburgs.

On

June 15, 2026, the Ginzburgs filed an opposition.

On

June 22, 2026, Empire West filed a reply.

Legal Standard

"A party shall

file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. Any other cross-complaint may be filed at any time before the court has set a date for trial." (Code Civ. Proc., § 428.50(a)–(b).) A cross-complaint filed outside either of the aforementioned times requires leave of court, which may be granted "in the interest of justice at any time during the court of the action." (Code Civ. Proc., § 428.50(c).)

A party who fails

to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to

assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50.) Leave to file a cross-complaint may also be granted “in the interest of justice at any time during the course of the action.” (Code Civ. Proc. § 428.50, subd. (c).)

Analysis

Empire West seeks leave to file a Cross-Complaint alleging causes of action for express and implied indemnity, declaratory relief, and breach of contract against Semyon Ginzburg and William Ginzburg.

The claims

asserted in the proposed cross-complaint are compulsory. Compulsory claims are those that are “related” to the suit in which the cross-complaint is brought, and a “related cause of action” is one that “arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.” (ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd. (2016) 5 Cal.App.5th 69, 81.) Empire West’s proposed claims arise out of the same incident underlying the complaint.

Because Empire

West’s claims are compulsory, leave to assert them in this action may not be denied absent a showing of bad faith. (See Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 99 [“Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.”].)

No bad faith is present here. The

instant motion was prompted by the Ginzburgs’ refusal to engage with Empire West regarding the tender demand served on March 25, 2025. On April 21, 2026, Empire West circulated a Joint Stipulation to all parties and the Ginzburgs refused to stipulate, thus prompting this motion. Although significant time has passed since Empire West filed its Answer on January 16, 2025, the delay was not caused by Empire West and the Ginzburgs had notice that Empire West

intended to file a motion for leave to file a cross-complaint back on May 12, 2025. (May 12, 2025 Case Management Statement, ¶ 2.) Thus, there is no showing of bad faith by Empire West.

The Ginzburgs argue that the Motion should be denied because the proposed Cross-Complaint fails to state a valid cause of action. The Court finds that since the Cross-Complaint's causes of action are compulsory, the Court may not deny them absent a showing of bad faith. The Court has concluded there is no showing of bad faith, thus the Court will not determine whether the causes of actions stated in the Proposed Cross-Complaint fail to state causes of action. Those inquiries are more appropriately raised by demurrer, summary judgment, or other pretrial proceedings after the compulsory cross-complaint has been filed.

Therefore, the Motion for Leave to File a Cross-Complaint is GRANTED.

Conclusion

Defendant's Empire West's Motion for Leave to File a Cross-Complaint is GRANTED.

Dated: June 29, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court